



DECISION

Complaint No. : POS/867/2024/Adv-M

Name and address of the complainant : Mst. Rehana Naz widow of Abdul Ghaffar Khan, House No. 3/790, Liaquatbad No.3, Karachi.

Name of the Agency Complained against : Sindh Building Control Authority Karachi Metropolitan Corporation

Name & Designation of Investigating Officer : Mir Hussain Ali Advisor-M

Vetted by :

Subject : DELAY IN APPOINTMENT AGAINST DECEASED QUOTA.

Complaint:

Mst. Rehana Naz widow of Abdul Ghaffar Khan filed her complaint dated 7.2.2024 regarding appointment of her son Danish against the deceased quota as her husband Abdul Ghaffar Khan an employee of Parks & Horticulture Department, Town Municipal Corporation New Karachi had expired in June 2023, while in service. She requested the intervention of this Institution for resolving her problem.

Proceedings:

2. The complaint after being admitted for investigation under Section 10 of the Establishment of the Office of the Ombudsman for the Province of Sindh 1991, was referred to the Municipal Commissioner, Town Municipal Corporation, New Karachi, for report.

2. The Law Officer, Town Municipal Corporation New Karachi vide his letter No. MC/TMC/NEW KARACHI/C/2025 dated 29.12.2025, stated that the Town Municipal Corporation New Karachi has processed the case strictly in accordance with the prevailing rules and procedures, and forwarded the same to the Local Government Department.

6. Irrespective of the above proceedings, the matter regarding appointments against deceased quota was ordered upon by the Supreme Court of Pakistan on 26.9.2024 that this provision is in violation of the Constitution. In compliance of this order the SGA&C Department, Government of Sindh vide Notification No. SORI/ (SGA&CD)2-25/2024 dated 19.12.2024, omitted the relevant Rule from the Sindh Civil Servants (Appointment, Promotion & Transfer) Rules 1974. The Law Department, Government of Sindh based on this Notification issued a circular No. D.Q.1.(12)/2024/ 220 dated 26th December 2024 declared all pending cases of appointment against deceased quota, as null and void

7. However, on 2.9.2025, the Supreme Court decided that their order dated 26.9.2024 would be applicable prospectively and not retrospectively. In compliance of these orders of the Supreme Court of Pakistan dated 2.9.2025, the SGA&CD Department, Government of Sindh amended the Sindh Civil Servant (Appointment, Promotion & Transfer) Rules 1974 by inserting a provision through Notification No. SORI(SGA&CD)2-2/2024 dated 11.12.2025 that only those cases of deceased quota, conclusively decided by the High Court of Sindh prior to the judgement of the Supreme Court dated 26.9.2024 shall be considered under the provisions of omitted Rule 11-A.

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Findings.

8. From the above proceedings it is clear that this complaint cannot be considered on merit as decided by the Supreme Court on 26.9.2024, that such recruitment is unconstitutional. Further, this complaint does not fall within the ambit of the Notification dated 11.12.2025 issued by SGA&CD, which states that only those cases which have been conclusively decided by the High Court can be considered.

Decision.

9. As such the above findings clearly indicate that in this complaint the grievance of the complainant cannot be redressed, as appointment against deceased quota has been termed "unconstitutional" in the judgment dated 26.9.2024 of the Supreme Court of Pakistan. Therefore this complaint is consigned to record.

"Given under my hand and seal of office"

Sd/-

(Muhammad Sohail Rajput)

Sitara-e-Imtiaz, PAS

OMBUDSMAN SINDH

Karachi, dated 22nd January, 2026

